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Senate of Virginia Floor Session, Monday, June 29, 2026

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[00:00:25] This is the Senate of Virginia, Richmond, Virginia, Senate Chamber.

[00:02:31] This is the Senate of Virginia, Richmond, Virginia, Chamber.

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[00:07:00] This is the Senate of Virginia, Richmond, Virginia.

[00:07:51] This is the Senate of Virginia, Richmond, Virginia.

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[00:13:49] This is the Senate of Virginia, Richmond, Virginia.

[00:15:12] This is the Senate of Virginia, Richmond, Virginia.

[00:17:16] Senate chamber. Be sure to stay connected with live sessions, catch up on past meetings,

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[00:19:58] This is the Senate of Virginia, Richmond, Virginia. Senate chamber. This is the Senate

[00:23:35] of Virginia, Richmond, Virginia. The Senate will come to order. The senators will please take their seats. Those persons not entitled to the privileges of the floor will retire to the gallery the senators and all who are in attendance will please stand if you are able we will today observe a moment of silent prayer and following the prayer everyone will please remain standing and be led in the Pledge of Allegiance to

[00:24:13] the flag of the United States of America by by Portia Brown administrative assistant in the Senate clerk's office please join me in observing a moment of silence. I pledge allegiance to the flag of the United States of America and to the republic for

[00:24:43] staying one nation under God, indivisible, liberty and justice. The clerk will call the roll. All those present, please vote aye. The clerk will close the roll. You have a quorum, Madam President.

[00:25:24] Senate Journal from Monday, June 22, 2026. The senator from Washington County moves that the reading of the journal be waived. All in favor of waiving the reading of the journal will record their vote aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 32, noes 5. Ayes 32, noes 5. The reading of the journal is waived. The clerk will report any communications from the

[00:26:02] House of Delegates. We do not have any Madam Chair, Madam President. The clerk will report any communications from the governor. We do not have any Madam President. We've now arrived in the time of our morning hour when we have the honor of welcoming our distinguished guests who are joining us today in the gallery. I give my daily reminder that I will call on a senator to provide the introduction. I ask that we all hold our applause until I've had the opportunity to provide the

[00:26:34] welcome of the senate the chair recognizes the senator from colonial heights thank you madam president i rise for an introduction senator has the floor thank you madam president uh joining us in the gallery today is azalea lehman um daughter of uh hobie lehman and uh she's uh somebody who lives in chesterfield and somebody i see her and her family at the gym uh very often and we're just very pleased to have her here today and as we offer the warm welcome of the

[00:27:11] Senate thank you senator for that introduction and welcome to the Senate Azalea we're so delighted to have you here we are always thankful for the work and support that your wonderful father provides to all of us throughout throughout the year here in the Senate thank you for being here this morning and senators I ask that we give the very warm welcome of the Senate to Azalea Lehman the Chair recognizes the Senator from King George. Good morning, Madam President.

[00:27:50] Rise for an introduction. The Senator has the floor. Thank you, Madam President. Today in the gallery we have Maria Suterlein. Madam President, she is going into the seventh grade at Cave Springs Middle School and I'm told that she is a basketball player. So I don't see the Senator from Virginia Beach, but he might want to talk about recruitment today. She's here to try to keep her father straight and God bless her because I can tell you he is a handful I have to sit behind mad president I would ask that you offer her the warm welcome of the

[00:28:27] Senate thank you senator for that introduction and welcome to Maria we're so delighted to have you here today and you get a chance to observe your father live up to his reputation as a senator from King George just described so we We hope you have a very wonderful visit today.

[00:28:44] And thank you for being here. Senators I ask that we give the very warm welcome of the Senate to Maria Suterlein daughter of our Senator from Roanoke.

[00:29:03] The chair recognizes the Senator from Hanover. Thank you Madam President. Madam President if the journal will reflect that the Senator from Harrisonburg is away from the capital and pressing personal business.

[00:29:19] The Senator from Rockingham? Rockingham. thank you senator the journal will so reflect senator senior senator from loudon thank you madam president madam president would the journal reflect that my seatmate the junior senator from virginia beach is a way on pressing personal business thank you senator the journal will so reflect the chair recognizes the chair recognizes the senator from eastern fairfax

[00:29:54] senator we will we will go straight to the calendar the clerk will call the calendar Senate calendar for Monday, June 29, 2026, Memorial Resolutions.

[00:30:20] Senator from Eastern Fairfax. Good afternoon, Madam President. Good afternoon. Madam President, I move that the Memorial Resolutions on page 2, SR 2077 through SR 2084, be considered in a block in the usual manner of waiting to read the resolutions thereof.

[00:30:38] With the understanding that any senator designing a resolution be removed from the block, we'll do so after the clerk has read the title of the resolution. The question is, shall the memorial resolutions on page 2, SR 2077 through SR 2084, be considered in the block in the usual manner, waiving the reading of the resolutions thereof, with the understanding that any senator desiring that a resolution be removed from the block will do so after the clerk has read the title of the resolution.

[00:31:07] All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. motion is agreed to. The resolutions are before us in a block. The clerk will read the titles of the memorial resolutions. Celebrating the life of Philo Duane Dibble. Senate Resolution 2081.

[00:31:28] Celebrating the life of Benjamin Andrew Burrell. Senate Resolution 2084. Celebrating the life of Kimberly A. Maloney. The resolutions will be agreed to in the usual manner. All those in favor of agreeing to the memorial resolutions please rise the resolutions are agreed to commending resolutions senator from eastern fairfax madam president i move that the commending resolutions on page 2

[00:32:04] sr 2078 through sr 2083 be considered blocked by voice vote waving the reading of the resolutions with the understanding that any senator's airing resolution be removed from the block will do so after the clerk has read the title of the resolution the question is shall the commending resolutions on page two SR 2078 through SR 2083 be considered in a block by voice vote waiving the reading of the resolutions with the understanding that any senator desiring a resolution be removed from the block will do so after the clerk has read the number of the resolution all in favor

[00:32:38] of that motion will say aye those opposed no the ayes have it the motion is agreed to the resolutions are now before us in the block the clerk will read the numbers of the resolutions senate resolutions 2078 2079 2080 2082 2083 the question is shall the resolutions be agreed to all in favor of agreeing to the resolutions will say aye those opposed no the ayes have it the

[00:33:13] resolutions are agreed to. Senator from Eastern Fairfax. Madam President, I think we probably need to recess till the house. I believe Senator from Hampton has a motion. Oh, okay. Thank you, Madam

President. I move that the rules be suspended to take up points of personal privilege. The question is, shall the rules be suspended to take up points of personal privilege at this point? All in favor of

[00:33:52] of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the role eyes 35 no zero eyes 35 no zero the rules are suspended the floor is now open for points of

[00:34:16] personal privilege what an unusually unloquacious bunch today senator from eastern fairfax thank - Thank you, Madam President.

[00:34:45] I guess none of our high school teams won anything in the last week. Madam President, we need to let the House catch up with us. So in light of that, I would move that we stand in recess 'til 12:45, although I've heard that they might be debating almost every amendment over there, so it might take a little longer than that, but I would ask the recess 'til then.

[00:35:08] - Without objection, the Senate will be at recess

[00:35:10] until 12:45.

[01:06:31] The Senate will return to order.

[01:10:03] The clerk will report any communications from the House. senator from eastern fairfax uh madam president moved away the reading of the communication from the house of delegates the question is shall the reading of the communications from the house of delegates be waived all in favor of that motion will say aye those opposed no the the eyes have it that's a recorded vote my apologies the question is shall the reading of the communication be waived all in favor of waving the reading of the communication from the house of delegates will

[01:10:42] record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 31, noes 7. Ayes 31, noes 7. The reading of the communication is waived. The clerk will call the calendar. House bill with Governor's recommendations. House bill 30. The chair recognizes. Senator from

[01:11:20] Eastern Fairfax. Thank you, Madam President. I move governor's amendment number one in speaking to that motion. Senator has the floor. Thank you, Madam President. This amendment helps elect cover the necessary costs relating to the translation of election materials, printing posters and brochures, preparation of the administration referendum for next year. Hope we get past it.

[01:11:39] The question is, shall governor's amendment number one be agreed to? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted do any senators desire to change their vote the clerk will strike the

[01:12:13] vote again the question is shall governor's amendment number one be agreed to all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 20, noes 18.

[01:12:37] Ayes 20, noes 18. Governor's amendment number one is agreed to. Senator from Eastern Fairfax. Number two. Okay. I didn't know if the clerk was gonna read it. Okay.

[01:12:54] Madam President move governor's amendment number two and speaking to that motion. Senator has the floor. Thank you Madam President. This amendment provides a million dollars to study

some oily fish the senator from King George speaking to the amendment senator has the floor thank you madam president just to give you a little bit more information and so what this does is it provides a million dollars each year the biennium to study menhaden and a bay cap and so I just

[01:13:30] want you all to keep in mind that what this is is a migratory fish that goes up Up and down the coast of the Atlantic seaboard, it comes into the bay, it spawns, and then it goes back out. And there are special interest groups that want us to study that to determine what a responsible bay cap is.

[01:13:51] They already have a bay cap, and they've had one. This whole industry is governed by the Atlantic States Marine Fisheries Commission. It's concerning to me for this reason: there are 260 families in the lower northern neck that rely on this industry, many of those people have been working in this industry for six generations, and it's all they know, it's all they do.

[01:14:18] It is the most highly regulated industry that I think we potentially have. We have VMRC on the boats. We have others looking to see what's being caught, taking that information down all the time, and there's no evidence whatsoever that there's any problem.

[01:14:38] In fact, I invite every member of this General Assembly and Madam President and the staff and everybody, I'll take you out in the bay and I'll show you. Because when you get out there in every direction you look, all you see are acres and acres and acres of bunker on the surface.

[01:14:56] And there are plenty of them. It's probably twice the biomass that it was in the 70s when it was not regulated. And the industries can only catch a small portion of that. So it is very, very healthy.

[01:15:11] And I remind everybody that they can only fish in about 20% of the bay. There's a small part of the lower bay where they can actually fish. Everything else is off limits. And so it concerns me from the perspective of 260 families that rely on this.

[01:15:28] And there are very good jobs in what I represent, a poor rural area. There are another 200 or 300 indirect jobs. There's about $250 million of economic activity from probably lower Fredericksburg into Hampton Roads that is as a result of this.

[01:15:48] And it's not just the reduction industry, it's the same people who catch bunker to bait the crab pots so that you can have crab meat and things like this. If I thought this was necessary, I'd be the first one to stand up and say we need to do this.

[01:16:06] But what my concern is, I see, you know, every year they try to shut this industry down, and I think this buys them five to ten years, and then that's going to be the end of it. And I hope I don't have to tell you all I told you so, but I hope we won't vote for this.

[01:16:23] The chair recognizes Senator from Eastern Fairfax. Thank you, Madam President. Speaking to the motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, the Senate, sorry, I gave a very short explanation earlier trying to move things along. I didn't realize we were going to have a further debate about it, but, you know, Menhaden is something that I think we've been arguing about since I got here 17 years ago.

[01:16:45] And I think all this amendment does is looks to do a study. It doesn't decide the issue one way or the other, but hopefully we'll provide some additional information to allow us to figure out whether or not we need to do anything or not. I know at least up in the area of the Potomac that I represent, there's a concern that the osprey populations have been significantly affected by a lack of menhaden.

[01:17:09] Madam President, would the gentleman yield for a question? Will the senator from Eastern Fairfax yield? Sure. Senator from King George. Madam President, I would ask the gentleman if he can explain to me how you determine a healthy population of a fish in one portion of the Chesapeake Bay when that entire stock is constantly coming in and out of that bay and there are no resident fish.

[01:17:37] Senator from Eastern Fairfax. President, I'm at the fisherman that the center from Kings, Georgia, so he spends a lot more time on a boat than I do. And I'm not a Medhaden expert, although I have been involved in some shad issues and snake heads and other things that live up towards my district.

[01:17:55] And I know that certain populations are more abundant in certain areas than others and return to certain areas and others. And I suspect that's why we have these fish experts down at VIMS that are hopefully going to give us some more information about it. So I just know that there's been some concern for the last 17 years, which, and so far we haven't done anything, but more recently there's concern about other effects the menhaden fishing might be having, although it might not be having.

[01:18:23] Hopefully this research will give us some answers. I think that's the point of the amendment. The chair recognizes the senior senator from Fairfax. Thank you, Madam President. Speak to the bill. Senator has the floor. I would hope we would support this.

[01:18:39] We have a situation where the Atlantic is also a fishing grounds for these fish. They come in the bay, they come out of the bay, as the gentleman from King George has stated.

[01:18:58] But we need information. We need information on these fish because that affects so much more than just this industry. Osprey are disappearing from the Chesapeake Bay. Now, is there conclusive proof that that's what's causing it, is the lack of menhaden? no but a lot of people feel like there is information is an important thing this is something we can afford to do we need to update our knowledge about this essential most important fish in the sea it's part of a chain of of a food chain that also deals with the rockfish the rockfish feed on these on these on these fish and information is important to have and

[01:19:37] we just can't go on anecdotal evidence as oh they're everywhere so I would urge us to support this amendment. The question is, shall the governor's amendment number two be agreed to? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 26, noes 12. Ayes 26,

[01:20:12] noes 12. The governor's amendment number two is agreed to. Senator from Eastern Fairfax. Thank you, Madam President. I move amendment number three in speaking to that motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senator, this amendment ensures that DMAS has full authority to participate in the cell and gene therapy access model. It's a CMS initiative that enables state Medicaid programs to offer transformative curative care therapies for sickle cell disease. Hope we can vote for it.

[01:20:52] The question is, shall Governor's Amendment number three be agreed to? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 38, no, zero.

[01:21:13] Ayes 38, no, zero. Governor's amendment number three is agreed to. Senator from Eastern Fairfax. Senator President, move amendment number four and speak to that motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senate, this amendment increases the

consumer agency-directed personal care rates by 4% on January 1, 2027, instead of January 1, 2028, so it ensures that home care workers will see a raise in the coming fiscal year, starting July 1, and not a year later. Hope you get past it. The question is, shall the governor's amendment number four be agreed to? All in favor of that motion will record their votes aye. Those opposed

[01:21:53] no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote. The clerk will close the roll. Ayes 38, no zero. Governor's amendment number four is agreed to. Senator from Eastern Fairfax. Madam President, move amendment number five and speaking to that motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, this bill, or this amendment has to do with water for data centers in the eastern Virginia groundwater management area, which is basically effectively everything east of I-95. The purpose of the

[01:22:29] amendment is basically to give DEQ some additional flexibility in terms of what technology is required for data center cooling the original language in the budget I think limited the technology to three different technologies and there's some other things like reused non potable water like stuff that comes off of roofs which we heard a presentation on on the in the Water Commission last year and some other technologies that they think ought to be considered and this just gives DEQ some additional flexibility that's what it does hope we can pass it the chair recognizes the senator from King George

[01:23:07] thank you madam president speaking to the measure senator has the floor um man president the gentleman from Fairfax is correct in one respect it does allow another technology it allows evaporative cooling and what that does is it completely guts the water restrictions that we put in the budget And I don't understand this because we negotiated this issue, I thought, with the House and the governor's office, the administration, and that's what went in to the budget conference report.

[01:23:42] That's why we were late. We negotiated that until eight o'clock at night or something, continuing to try to figure this out and come up with what we thought was a reasonable solution. So the language that came out in the budget conference report were reasonable restrictions to try to address the water shortages that we're facing now.

[01:24:04] What this does is it blows it wide open. So let me explain to you what evaporative cooling does because that's what this allows for. They call them swamp coolers. And so they take a material, I'll say like baby diapers, and there's just this vast amount of it and they keep it saturated and the hot air from the servers blow across it which causes the water to evaporate and cool down the servers it is the cheapest most ineffective technology that the data center companies use it and there's predominantly only one that i think uses it

[01:24:43] and they happen to be the biggest as i understand it and i have been chastised for using companies names on the floor of the Senate before, so I won't say it today. But for the life of me, I don't understand why we negotiate in good faith, we have language that we think everybody agrees to, that protects the water resources for the state of Virginia.

[01:25:07] It's not just for the Eastern Virginia groundwater management area, it's for the state. And this just completely takes it away and says, "Okay, we hope that DEQ will do the right thing." And I believe DEQ does a good job, many respects, but remember, DEQ can only do what an administration lets them do, and we've seen that before, and we'll see it again.

[01:25:35] And so, the situation that I'm faced with, that many of you all are faced with, I've got about 12 data centers that sit Stafford, Fredericksburg, Spotsylvania, some coming up in Carolina, and King George, they all will draw from the Rappahannock River.

[01:25:52] And if you use evaporative cooling, you lose about 50% of the water to evaporation. Now somebody in here, please explain to me. How is that a conservation measure?

[01:26:08] If you're going to evaporate 50% of the water into the atmosphere, how are we being conservative with water? It's ridiculous. I don't understand it. I don't know why we're seeing this amendment. I have my suspicions.

[01:26:25] was one of the most significant conservation measures that we got in the conference report. We couldn't get anything on electricity. We couldn't get anything on noise. We got promises to do something in the future, and now they want to take this away from us. And I hope, I hope that you all will vote no and reject. I don't like to reject the governor's amendment, and I don't know why I couldn't talk to them about this and try to work it out.

[01:26:54] but to take out and strip the protections that we got in my mind is just beyond the pale please vote no the chair recognizes the senator from western prince william county thank you madam president speaking to the amendment senator has the floor thank you madam president mad president when i was in journalism school i had one of my professors who used to tell us uh when we did something that was well we'll just say uh not to his liking he would say that's vague be specific and the issue that I took when reading the amendment fell into a couple different areas so

[01:27:30] on one part here we it's a good thing for us to say we want to minimize water usage with this I think that's something that all 40 of us plus one in this room can agree on at the same time there's no actual detail about what constitutes minimize that will have to be established by Department of environmental quality, but at the same time, regardless of who's there now, what's the precedent that you establish for having them do that? Now we can get told, well, hey, they're going to be a regulatory body in the first place. They come up with regulations. Maybe we don't want to put

[01:28:07] regulations in that level of detail into a budget amendment. I would argue back that on number one, we put in regulatory detail and stuff all the time. We did with the cannabis amendment, for example. There's plenty of stuff that's in there that we did not solely leave to the discretion of each department or each agency.

[01:28:27] Next part here is there's a line where it says when it's going through the different types of systems, including air cooling, closed-loop systems, recycled water, stormwater reuse, non-potable reclaimed water, or other technologies approved by the department, that's not specified.

[01:28:45] And then when we get later about the department, the department by October 15, 2026 shall conduct a study and provide a plan on the retrofitting of existing data centers in the Eastern Virginia groundwater management area to use air cooling systems.

[01:29:00] and then kind of goes on 100 recycled water and or storm water for cooling or use of a closed loop system providing a plan is not the same as a requirement or prescription in the code of virginia we talk about all the time here the difference between may versus shall this isn't even a may at that point if it is simply a plan as opposed to actually outlining what that regulation would be that leads us to the final

concern that i want to bring to this which is what is that appropriate ratio that you would be talking about when you're dealing with still

[01:29:38] allowing evaporated evaporative technology to be used in the first place when it's not specifically spelled out in the budget amendment before us or is it going to be 50 plus one is it going to be four percent ten percent right now we don't know and we won't know at the minimum until october 15th 2026 when that report comes out but even then if it's a plan as opposed to requirement my concern is going to be is there going to be significant legal loopholes here in which the industry does not have to comply to this i understand the argument that by having

[01:30:16] water minimization spelled out in here it's different than just having a list of technologies I get it. I get what they're trying to say, but my concern here always goes back to are we giving sufficient legal recourse here? Because right now we have plans and we've got minimization, but what we don't have are, in my point of view, is sufficient requirements that I think would strengthen this. Thank you, Madam President. The chair recognizes the senator from Eastern Fairfax.

[01:30:54] Thank you, Madam President. Just a couple things I just want to note for the body. senator has the floor sorry thank you speaking the amendment first of all if y'all read the language in the action in the amendment right here you know two two important things one is that it says a data center shall only use direct evaporative cooling in conjunction with one of the department's approved primary technologies so in other words direct evaporative cooling can only be used but it has to be used in conjunction with one of the other technologies which has

[01:31:28] to be primary so that means it cannot be overwhelmingly evaporative cooling and obviously all this have to be sorted out by regulation as well but I think that's important now also just note that this language was was worked on over the last week with stakeholders who had input in this although obviously you know we haven't had a public hearing about it or anything but but this this this this compromise came up after the language came out last week and it's not it does

[01:32:00] not approve uncontrolled, open-ended evaporative cooling. It requires minimization of water usage. That's the other thing that's important to read is in this language, it also says that in order to get the permit, they have to demonstrate to the department that it has minimized the use of any type of water for cooling purposes and demonstrate the use of best available water-efficient technologies. So the whole thing is aimed towards minimizing water. I think that's important. I think we ought to support it. The chair recognizes the senior

[01:32:36] senator from Fairfax. Thank you, Madam President. Speak to the bill, or the amendment. Senator has the floor. Thank you, Madam President. I think we can reasonably assume that the concerns expressed about what DEQ will do is uncertain, but I think the governor has made it very clear here in this amendment that this is going to be administrative policy, and if we like the plan they come up with, We can codify it next year, but let's get some information, let's get a plan put in place to do this.

[01:33:06] This is an important industry to the Commonwealth of Virginia, and I urge everyone to support the amendment. The chair recognizes the senator from King George. Thank you, Madam President. If no one else wishes to speak.

[01:33:22] Senator has the floor. Thank you, Madam President. Just to put a couple finer points on a couple things that the senator from Fairfax said. He mentioned that this was a compromise that came up

with the stakeholders over the week.

[01:33:39] I'm not aware of one, one conservation group that supports this amendment from the governor. Not one. Chesapeake Bay Foundation does not support it. And I spoke to them about this earlier. Now, I will tell you that many of them are worried that if this amendment doesn't pass, she's going to veto the original language in the conference report.

[01:34:05] and that is her right as governor but this language gets us nowhere so why would you vote for something that takes away all of the conservation measures that we had it's interesting again the senator from Eastern Fairfax talked about it can only be used in conjunction with the primary method approved by DEQ what what if evaporative cooling is a primary method that's approved by DEQ. They'd have that authority under this, so that's all you had to use. But what we

[01:34:41] anticipate is it would be used with reclaimed water. And so if you understand how that works, you either draw water out of the aquifer, people use it, it goes through a treatment plant, and then it would be used for this evaporative cooling. Again, you lose half of it to evaporation, so that means a very little bit of it's going back into the river or Hampton Roads case they do the Swift model where they actually inject water back in there would be no water to inject back in that's the problem with evaporative cooling it is not a conservation measure it's

[01:35:21] the cheapest most ineffective inefficient technology out there and they do it to save money but our citizens and our other businesses have to pay the cost for this because water gets more scarce and more expensive because we're giving it to them to throw away. That's the problem and that's why we need to reject this amendment. The chair recognizes the senior senator from Prince

[01:35:55] William. Thank you madam president. Apologies to my friend from King George. He spurred me to speak to the amendment, Madam President. - Senator has the floor. - I'd appreciate it and only gonna speak to it from more of an engineering standpoint to my good friend and we serve on the Chesapeake Bay Commission and I think we both very much care about this issue.

[01:36:17] I think from an engineering perspective, I'll apply a couple of examples to the body. One of which the amendment says, shall demonstrate to the satisfaction of the department that has minimized the use of any type of water for cooling purposes and demonstrated the use of best available water efficient technologies.

[01:36:34] The good thing is that is measurable, that is quantifiable. It's called British Thermal Units, BTUs, or the tons based on the technology. So just the engineering behind it from this body's perspective, we have something that's measurable. It is not subjective, both in terms of the water consumption and the energy it uses for that cooling system.

[01:36:56] So just from a level setting standpoint, the amendment from the best available technology bases itself in actually science and data. The second part of the amendment also says, so demonstrate the satisfaction of the department that has minimized the use of any type. So this is also the supplemental side.

[01:37:13] As a primary example, for instance, I'm working on a project that has geothermal fields. Geothermal fields, the soil and depth of soil has certain yields that you can achieve. And on the one project I'm working on right now, I have to supplement that because my yield in the fields can only get to about 90, 95% of the yield I need for that building.

[01:37:36] And so I have to augment. So in this condition, for instance, they might use a best closed loop or geothermal or some other technology to supplement the system. What allows for is to EQ the flexibility to say of the other menu type of systems that still minimize what's important, which is minimizing that water use.

[01:37:53] What other technologies can you supplement to augment? So I think there's some engineering solutions that they're trying to put into this to make sure that it is something recognizes something that is scientific and measurable in this process while still achieving the goal which I think we all share which is minimizing the impact of water use so from a much more agnostic standpoint I want to provide a little bit more data to the body about how it's actually implemented this weekend you're about to experience about 103 degree heat most of your heating systems cooling systems and your cooling systems your home are not going to be designed to

[01:38:28] to that and so what happens is your typical systems can get to about 98 99 depending on the humidity index and ash rate tables what's going to happen is your systems are gonna be maxed out by Friday and your temperatures in your houses you're gonna go up and so what the engineers have to do is typically allow for supplemental systems that go up above and beyond like that 98 degree to 105 degree heat for these sort of extreme conditions and I think that's what DEQ is trying to say is the base system has to be the best available has to be best in the market on water use engineering wise what they're also

[01:39:06] recognizing is there's probably supplemental systems that need to be considered in the process so I want to make sure the body understood that there's probably a couple different steps while understanding the political nuances of what was going on I think this is a more technical amendment around the issues from an engineering perspective that some specific sites might face. So I appreciate the body's time. The question is, shall Governor's Amendment number five be agreed to? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the

[01:39:41] senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 28, noes 10. Ayes 28, noes 10. Governor's Amendment number five is agreed to. Senator from Eastern Fairfax. Thank you, Madam President, I move to Governor's Amendment number six and speaking to the motion. Senator has the floor. Thank you, Madam President.

[01:40:11] Ladies and gentlemen, Senate, Governor's Amendment number six has to do with RGGI. The original budget language held that the SEC was to look at refunding about 45 percent of RGGI revenues to certain ratepayers i think it was residential um churches and i think one other group um in review of that language it was uh determined that co-ops were not included so this language now picks up

[01:40:46] co-ops adds co-ops to that to that um refund uh that's what the amendment does i hope we could support it and i know this is an issue we will continue to look at in the commission on energy Commission on Electrical Utility Regulation for the next two days, the next 36 hours, Commission on Energy after that, over the next six months.

[01:41:08] The question is, shall Governor's Amendment No. 6 be agreed to? All in favor of that motion will record their votes aye. Those opposed no. Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote? The Clerk will close the roll.

[01:41:32] Ayes 25, noes 12. Ayes 25, noes 12. The Governor's Amendment number 6 is agreed to. Senator from Eastern Fairfax. Madam President, I move to Amendment number 7 in speaking to that motion.

Senator has the floor. Thank you, Madam President.

[01:41:48] Ladies and gentlemen, the Senate, this amendment was necessary. I guess there was some surgery that was done when the Governor made amendments last time that resulted in undercover police officers being left out of the exceptions because we accepted certain amendments and rejected others. This basically just makes clear that the ban on facial coverings does not apply to undercover police officers Which would kind of be a problem if you're undercover. Hope we could pass it. The question is shall governor's amendment

[01:42:23] Amendment number seven be agreed to all in favor of that motion will record their votes aye those opposed no Are the senators ready to vote have all the senators voted do any senators desire to change their vote? the clerk will close the roll ayes 37 no zero ayes 37 no zero the governor's amendment number seven is agreed to senator from eastern fairfax thank you madam president i would move amendment number eight and speaking of that motion senator has the floor thank you madam president this bill

[01:43:01] amendment basically provides two million dollars a year from the general fund to establish a new grant program to support localities and providing cancer screenings for career firefighters it also creates one position and funding for the agency to hire additional grant administrators to administer that grant. I'd hope we all could support minimizing cancer amongst our firefighters and pass this amendment. The question is shall governor's amendment number 8 be agreed to? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all

[01:43:34] the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 38, no zero. Ayes 38, no zero. Governor's amendment number eight is agreed to.

[01:43:51] Does the senator from Franklin County wish to speak? Senator from Eastern Fairfax. Thank you, Madam President. Hallelujah on that. I move amendment number nine and speak to that motion. Senator has the floor. Thank you, Madam President. Madam President, for anybody here who's ever been frustrated by a fiscal impact statement, when you put in a bill and find out it costs a million dollars to fix a computer you ought to support this amendment because i think the point of this amendment is trying to reduce the amount of money we spend on digital services stuff within the

[01:44:30] commonwealth and uh i know that if i ever leave this body i think what i'm going to do is i'm going to start a software company that does software edits for government computers because it sure seems like a very lucrative area with all my bills that have died through the years because of software impacts so I would hope we could pass this amendment to create a new digital services team to help us edit software make software changes more efficiently within the Commonwealth Virginia's governments the question the

[01:45:06] question is shall governor's amendment number nine be agreed to all in favor of that motion will record their votes aye those opposed no are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[01:45:22] The clerk will close the roll. Ayes 20, noes 18. Ayes 20, noes 18. Governor's amendment number nine is agreed to. Senator from Eastern Fairfax. Thank you, Madam President. I move Governor's Amendment number 10 and speak to the motion. Senator has the floor. Thank you, Madam President.

[01:45:42] madam president this amendment would um authorize dcr to make oak hill a state park subject to certain conditions um virginia has a long and proud history of presidents we've got eight of them so far and we got a little alcove down there in the rotunda waiting for the ninth it's currently got lafayette's head sitting in there um but we uh have a long tradition in the state of honoring our presence. James Monroe is our fifth president. His property, Oak Hill, Lowne County is 800 acres.

[01:46:15] It's a beautiful property. If any of you haven't been there, I encourage you to get there. It's got amazing potential, amazing opportunity for both outdoor opportunities, events, historical interpretation, and all kinds of benefits that will honor to the residents of our entire Commonwealth, and I think the entire country. And I would hope we could support this amendment. The question is, shall governor's amendment number 10 be agreed to all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[01:46:55] desire to change their vote the clerk will close the roll ayes 31 no 7. ayes 31 no 7. governor's amendment number 10 is agreed to senator from eastern fairfax thank you madam president i would move amendment number 11 and speak that motion senator has the floor amen president amendment number 11 makes technical adjustments the data center electricity consumption tax it was an amendment that was requested by the scc finding clarification on the administration consumption tax to help the commonwealth um collect it in a timely manner hope we could

[01:47:30] support it the question is shall governor's amendment number 11 be agreed to all in favor of that motion will record their votes aye those opposed no are the senators ready to vote Have all the senators voted.

[01:47:46] Do any senators desire to change their vote? The clerk will close the roll. Ayes 36, noes 2. Ayes 36, noes 2. Governor's amendment number 11 is agreed to.

[01:48:04] Senator from Eastern Fairfax. Thank you, Madam President. I'd move amendment 12 and speak to the motion. Senator has the floor. Thank you, Madam President. Let amendment 12 strikes language that would make it challenging for localities to have enough time to put a referendum on the ballot this November if they want to do this one percent sales tax for school construction or transportation and this also makes some technical amendments it's basically the purpose is to ensure that localities have enough time to put the optional referendum on the ballot for the november 2026 election hope can support it the question is shall the governor's amendment number 12 be agreed to all in favor of

[01:48:42] that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 21 no 17. ayes 21 no 17. governor's amendment number 12 is agreed to senator from eastern fairfax and president move amendment 13 and speak to the motion senator has the floor thank you madam president this basically does i think um two changes to the sick leave

[01:49:17] legislation in the past one aligns the definition of family member to what was passed in the paid family medical leave bill so that the definitions are consistent which will help employers the second thing is it a lot it makes it clear that employees can take their sick leave in increments employers have some flexibility in creating increments but they can't set the smallest increment at less than four hours I hope you pass it the chair recognizes the senator from Arlington thank you madam president madam president speaking to the amendment the senator has the floor thank you madam president I just want to note that these requested changes have been agreed to by all of the stakeholders. The business

[01:49:56] community is particularly interested in having the definitions align and the administration wants to move forward with recommendations for both the paid family medical leave and the paid sick day leave and these amendments will help in that regulatory process. So I hope it is the will of the body to support the amendments. Thank you. The question is, shall Governor's amendment number 13 be agreed to. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators

[01:50:34] desire to change their vote? The clerk will close the roll. Ayes 20, noes 18. Ayes 20, noes 18. Governor's amendment number 13 is agreed to. Senator from Eastern Fairfax. Thank you, President. Move amendment 14, the final amendment.

[01:50:51] Speaking of the motion. Senator has the floor. Thank you, Madam President. Ladies gentlemen said this last amendment basically just delays the effective date of the senator from Richmond's legislation having to open carry there was some unintended consequences I think that were in the bill probably need to clean up next session but so this basically just delays the entire bill until July 1 of next year hope we could pass it the chair recognizes the senior Senator from Virginia Beach. Madam President, speaking to the amendment. Senator has the floor.

[01:51:30] Madam President, over the last month, I've had a few conversations with our Secretary of Public Safety, not just on this piece of this amendment, but on the overall bill. I've also heard from five chiefs of police, three sheriffs, two jags, and multiple individuals from the government contracting industry. Madam President, after I heard from them, I figured I'd try to write this down and get answers so I wrote up a bunch of scenarios that individuals were talking to me about my chiefs of police my sheriffs my Jags a lot of the

[01:52:05] government contractors who do integration of tools and weapons and things into systems that they further provide to the military madam president I don't know if the body knows it or not but any weapon in the state of Virginia that's transferred to the military, to the FBI, anytime an ATF agent needs a new gun, any police department, any sheriff, anyone in law enforcement, it has to go through a Virginia local FFL. So with every single weapon that transfers in or out of any federal, state,

[01:52:44] or local law enforcement activity that operates here in Virginia has to go through a local FFL. So if a police officer is retiring and he sends, they send off, and under a different section of code, he can get his gun that he had at a reasonable cost.

[01:53:03] I believe it's usually set at a dollar or two. And if that gun were to happen to have a magazine above 15 rounds, he's got to send it to Richmond. It comes back and it's got to be transferred through a local FFL. Well, guess what?

[01:53:18] when he retires as a law enforcement um officer he's now retired so he's no longer a sworn law enforcement officer so for the ffl to transfer that to him it's against the law now he can have it because he's a retired ffl but an ffl can't transfer it to him that's one of the scenarios we brought up there are a few with military retired military integrators just about every one of us have a government integrator in their district or some districts you have a

[01:53:54] couple hundred of them well when you integrate weapons into a system for the government you're under government contract to do that you are not a government employee you are not an agent of the government you do not fall within our code section here chapter 107 at all you're not a government

officer not a government agent, not a law enforcement officer. You're not an employee member of the armed forces of the United States. You're not a security personnel at a contracted defense facility

[01:54:31] as defined in 182121.3, or a person authorized by the U.S. Nuclear Regulatory Commission. So basically, when you transfer it in, you can't do your job. And for the FFL who transfers it to that individual who's integrating it into that weapon system, they cannot do their job anymore.

[01:54:56] So the Secretary of Public Safety and I have had many conversations about this. We went through about 15 scenarios, and before I got back to any of my five chiefs of police, three sheriff, two jags, and other government contractors who have brought this up to me, I said, hey, I'm going to do the responsible thing, and I'm going to run this through our LIS attorneys to make sure that I'm not missing something. And what our LIS attorneys came back with, hey, and I laid out a bunch of these scenarios. A court's analysis would be dependent upon the facts at hand,

[01:55:33] and the constitutional analysis involving the supremacy clause would also be likely to come to play, but it's got to go through the court systems. Another answer. I'll just give you a summary on it. In summary, much of what we discussed in a lot of these scenarios would be left up to a court's interpretation. I hope that what I've provided here lends some clarity, but these are complex issues in gray areas not clarified in legislation that would need to be more thoroughly analyzed through litigation as much of it is rather fact-dependent. So imagine me, retired military

[01:56:12] guy spent 20 years six months in very close to my military my law enforcements came out of one of the communities that really in my district that use this stuff and rely on this to do their job and i'm not talking about and i'll get into this other part in a minute these individuals when i went back to them i said well it's a little confusing still and basically the courts are are gonna have to interpret based on the fact pattern.

[01:56:42] One of my integrators goes, well, does that mean somebody's gotta get in trouble, get arrested, and then there's a court case before we can figure this out? And I said, pretty much. So I know that we generally here try not to write legislation that's conflicting.

[01:56:59] Oh, wait, let me digress for a minute. Every time I called the Secretary of Public Safety, and he's a great guy, he returned my calls, very responsive, every single time he'd say, "Hey, I need to run this by the governor's policy people. I need to run this by the governor's policy people."

[01:57:14] Last Thursday, when I talked to him, I said, "Hey, have you run this by the governor's policy people?" He goes, "Yes." I said, "Do you have an answer?" He goes, "No." So I called Friday morning again and he goes, "Hey, I heard the governor's policy person is gonna call you on this and have a discussion."

[01:57:30] So about one o'clock, the governor's policy person and I, I was walking into a meeting, The governor's policy person and I had a conversation. I actually had somebody try to come out, knock on my door and grab me to explain that, hey, there's 30 people in here waiting for you.

[01:57:47] You're delaying our meeting. Hello. I'm like, hey, I'm on with one of the governor's policy people trying to make sure I articulate something to him. He said, hey, you'll see a response to this. You'll see a correction. You'll see something out of us, hopefully in the amendments. Great.

[01:58:03] In the amendments, we hit one of the issues. We didn't hit a whole lot of the other issues. Madam President, will the senior senator from Virginia Beach yield for a question? Madam President, I'll

yield when I'm finished. And I'm happy to answer any questions that the gentleman has. Senator from Virginia Beach may continue. Madam President, one of the things I find frustrating here, and I hear this from my constituents a lot, and they ask me about the folks who are writing our gun laws.

[01:58:29] And they say, do they understand guns? And I say, some of them do, some of them don't. They said, well, if they understand guns, if they understand people in our rural communities, do they understand hunting? Do they understand livestock protection?

[01:58:46] Do they understand that for many families, a firearm is not a political talking point? It's truly a tool. It's a tool to put protein and food on our table. And I said, hey, I've tried to explain that a shotgun that has a choke isn't an assault weapon, that choke that screws into a shotgun is really to change the pattern of the shot coming out to help affect accuracy safety and really focus on the type of game that's being hunted but it really is a it allows you to take a responsible

[01:59:23] and ethical shot I've explained that a few times and they've come back and said okay, well then why are they saying every time I screw on a choke that it's now an assault weapon? I said, well, they really don't understand this. Madam President, when I talk to these individuals, they talk about a turkey gun with the front thing.

[01:59:46] And we've had that conversation on here, that front stock on a hand grip on a turkey gun, which allows for safety, security, and allowing a hunter to take an ethical shot. So, Madam President, as we go through this, the individuals are saying things to me, and I've got a lot of farmers now in my new district, and I really like talking to them.

[02:00:07] They come up with good ideas and unique things that I really haven't heard before. One of them said, hey, you know, do the folks up in Richmond, because they refer to everybody up here as the folks up there and them people, do they realize that when you've got a coyote coming after your livestock and they're running at 35 miles an hour, that it's real difficult to hit them with one shot or two shots. And sometimes you got to pop off a few rounds to stop them. And oh, by the way, our livestock is what we put into the grocery stores for those folks up there in Richmond to feed their families. Got it. I

[02:00:42] understand. I'll try to make sure I continue to explain that. Madam President, we talk about affordability and a lot of the folks that I talked to affordability to them is being able to continue hunting and shooting and putting game on the table for their family so they have protein and that a president when folks up here see a pistol grip a lot of them see an assault weapon when folks down where I'm from and a lot of our rural communities see a pistol grip on a shotgun they understand that's to help with aiming accuracy and taking an ethical shot matter

[02:01:18] President, you know, when we talk about guns up here, you have both sides. I try to explain that, hey, the word gun, and immediately, I assume a law-abiding citizen who's using a gun as a tool for feeding their family, protecting their livestock, doing the right thing. And Madam President, a lot of folks, when they see that, they hear the term gun and they hear what we're doing here and they say, oh, that's got to be criminal activity. No, we have law-abiding citizens and they're not the problem they're the ones who use guns we have farmers protecting their livestock they're not the problem we have the hunters who are

[02:01:57] feeding their families guess what they're not the problem we have the grandmother with a shotgun in her house because the sheriff is 30 minutes plus away from responding to her house the madam president whether it's a veteran a sportsman a farmer a single mother a homeowner a person

living down a long dirt road these are the people we should be we should not be targeting here These are the people we should try to understand how they use these tools in their everyday life.

[02:02:26] They're not criminals. And as a matter of fact, we should be going after criminals with programs like Operation Seize Fire. One that successfully worked across this country was established under President Obama. Helped lower the amount of shootings in Boston, in Richmond, in Baltimore.

[02:02:47] Those are the programs we should be looking at. We should be keeping violent offenders off the street, but we don't want to, but today with the legislation we do, we don't want to keep them in jail. We want to forget that for every crime, there's a victim. Guns aren't bad. They're the tools we use to protect. They're the tools we use for self-reliance. They're the tools that many people use and families use to provide food for the table. We're not asking Richmond to teach us how to hunt in rural communities. We're asking

[02:03:21] Richmond to stop taking away the rights, the tools, and the tradition of people that it does not understand. And when we look at the federal integrators that literally help keep the jobs in Virginia, even in Northern Virginia, we don't want to lose them. We don't want to create it so they can't do their jobs. We don't want them to do what Boeing did, which is take $74 billion out of the Commonwealth and move their three top branches of government services to St. Louis out of Virginia.

[02:03:58] We want to keep our government integrators here. We want to keep our law enforcement folks understanding the clarity of the laws we pass. And we should be passing clear, concise laws, not laws that continually confuse individuals and are going to get law-abiding citizens in trouble.

[02:04:18] situations the scenarios I talked about today are still up in the air we still don't have clarity and as the folks from LIS said we're gonna need the courts to decide and interpret the facts of these before they get anything done that's wrong we need to stop this we need to retract all of them we need to repeal all of them this is ridiculous thank you at that point miss madam president I'm happy to answer any questions from anybody on the floor thank you the - Senior Senator from Prince William, do you wish to ask a question?

[02:04:52] - Thank you, Madam President. Although, I've gotta check the predictions market as to whether or not we're gonna adjourn at two o'clock or not at this point. With the Senior Senator from Virginia Beach yield for a question as I might have lost where it was that the gentleman was going.

[02:05:08] - The Senator has yielded already. - Senator from Prince William. - Thank you, Madam President. I'd ask the Senator, is he for or against question that's before the body which is whether or not this law will be implemented this year or next year so senior senator from the question from Virginia Beach has the floor and madam president let me explain it this way there should have been a complete repeal of these bills not a partial tiny little fix it's unconstitutional what we've done here and the courts are going

[02:05:45] to have to decide it's just I don't think we should take our police military, our law enforcement, our federal law enforcement, our integrators, I don't think they should have to go to the courts to figure out how to get their jobs done. Senator has the floor. Thank you, Madam President. A vote green on this amendment would have the effect as to delay the implementation of the bill that the senator is speaking to. Is that correct? That is correct, Senator. Madam President, if I may. Inquiry, Madam President. Senator has the floor. And so a red

[02:06:19] vote on this amendment would mean that the law that the senator is also speaking to would be implemented sooner. Is that correct? That is correct, Senator. Thank you. Senator, senior senator from Virginia Beach. Thank you, Madam President.

[02:06:34] Madam President, this amendment does not solve the problem. This amendment does not allow these people to get their job done. This amendment only focuses on the transportation side of this bill. It has nothing to do with the transfer side of this bill.

[02:06:52] Madam President, this amendment does not put these people back to work. This amendment puts these people in courts to figure out what we've passed up here and stop them from doing their job. Thank you. The chair recognizes the senator from Lynchburg.

[02:07:12] Thank you, Madam President. Will the senator from Eastern Fairfax yield for a question? That's you. Will the senator yield? from lynchburg thank you madam president when the senator from eastern fairfax was talking about this bill he just gave a sentence or two and he briefly said we need to delay this for a year because there are some unintended consequences and i would like to know what those unintended consequences are senator from eastern fairfax thank you madam president um sure happy to talk

[02:07:49] about it so just to remind everybody about how we got here um the um i don't believe the senior center virginia beach was talking about this bill really uh this bill has to do with open carrying of ar-15s or assault rifles not buying them or selling them or transferring them it has to do with open carry of them and the reason it became necessary is because some people found it necessary to open-carry assault rifles in some very unusual public places.

[02:08:23] For example, the city of Alexandria's farmer's market, where I think some group from Hopewell came up to have a freedom walk while they marched through a farmer's market with AR-15s because they said they wanted to demonstrate to everybody they were allowed to. Madam President, I don't want to be rude, but the question was, what are the unintended consequences?

[02:08:43] I'm getting there. We know why we got the bill. Senator from Lynchburg will yield. I'm getting there. Senator needs to answer the question. I'm getting there. So the point of the bill was to make sure that people aren't going to march around with these weapons in public to scare people. We're not out there harvesting food or shooting protein or whatever. They are using it to scare and intimidate people. And the unintended consequences is that by tying the definition of the open carry prohibition to the assault rifle definition, somebody could carry, for example,

[02:09:22] a legal rifle like a deer hunting rifle but they could attach a large magazine to it like a 20 I think either a 15 or 20 bullet magazine to it and still march around with that in public instead of an actual assault rifle because under current law under current existing law that this repeals you're not allowed to carry a shotgun that carries more than seven rounds, or a otherwise legal rifle, which has a magazine of more than 20 rounds, and

[02:10:00] I think seven or 10 jurisdictions in the state, which the senator from Richmond's bill repeals, and just applies an assault rifle open carry ban statewide. But because we eliminated the existing language, it would actually allow some guns you can't carry legally to now be able to be carried legally in public in 10 jurisdictions.

[02:10:23] Madam President. from Lynchburg. The Senator from Eastern Fairfax yield for a further question. Will the Senator from Fairfax yield? I'll yield. Senator from Lynchburg has the floor. Thank you, Madam President. So am I correct that this amendment is delaying the enactment of a bill that was passed by the General Assembly this year and signed into law by the governor within the last month or so?

[02:10:53] Senator from Eastern Fairfax. That's correct. Thank you, Madam President. The chair recognizes the senator from Chesapeake. Thank you, Madam President. Would the senior senator, not senior citizen, but senior citizen, a senior senator from Eastern Fairfax rise for a question?

[02:11:16] The senator from Eastern Fairfax, who is not senior, nor a citizen. I didn't know there was more than one of us from Eastern Fairfax, but I'll yield. Senator may ask the question. Thank you, Madam President. This question I've had from several businesses, what happens in a situation where a service member, prior to deployment, placed their firearm in a pawn shop, the firearm wasn't classified as an assault rifle at the time, the service member still remains deployed past July 1, under the new law governing AR-style firearms and large capacity magazines, how will this affect both the deployed and the pawn shop owner?

[02:11:55] Senator from Eastern Fairfax. Thank you, Madam President. Again, first of all, this bill has to do with open carrying of assault rifles, which means that unless it only comes into play if somebody decides to carry it out of the pawn shop openly, not in a case.

[02:12:14] So that's what this bill talks about. And if anybody has any concerns about this law, any concerns, they ought to vote green because that means the law isn't in effect for another year and we got another year to work on it. If you vote red, then you get to find out potentially in court whether or not you're breaking the law or not.

[02:12:35] But I believe the question was probably directed towards the actual assault weapon ban as opposed to this bill, which has to do with open carrying of assault rifles. And the answer to that question, I'd have to think about it a little bit. My guess is you can't sell it after July 1, period.

[02:12:56] Senator from Chesapeake. Yes, thank you. Madam President, the question was, they put it in a pond to receive money. They hold it. They pay every month on this. And then when they want it back, they have to pay the fee to get it back. Is the senator asking a second question? Sorry, Madam President. Will the senator yield? Thank you. So what they're asking is they have them holding for this person that's in deployment. They won't get back before July 1. They pay on it every month. And so they don't know if they should continue taking the money or if they should just tell them that they no longer can receive their weapon due to this this bill was there a question there

[02:13:35] senator yes I was asking him senator from Eastern Fairfax yeah the the the senator from Charlottesville tells me that good leaders say that's an excellent question for an attorney general's opinion you ought to ask for one senator from Chesapeake thank you madam president seeing no other senators who wish to speak the question is shall the governor's amendment number 14 be agreed to. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators

[02:14:15] desire to change their vote? The clerk will close the roll. Ayes 20, noes 18. Ayes 20, noes 18. Governor's amendment number 14 is agreed to. Supplemental calendar number one memorial resolutions the chair recognizes the senator from eastern fairfax madam president i move the commending

resolutions on page two sr 2088 through sr 2090 be considered in the block by voice vote waiving the reading the resolutions with the understanding that any senator desired to move resolution from the block will do so after the clerk's read the number of

[02:14:51] the resolution the question is shall the memorial resolutions on page oh i'm sorry i did the wrong one page one of the supplemental calendar sr 2085 through sr 2091 be considered in a block in the usual manner waiving the reading of the resolutions thereto with the understanding that any senator desiring a resolution be removed from the block will do so after the clerk has read the title of the resolution all in favor of that motion will say aye those opposed no the ayes have it the The motion is agreed to. The resolutions are now before us in the block, and the clerk will read

[02:15:30] the titles of the memorial resolutions. Senate Resolution 2085, celebrating the life of C. Wayne Stevens. Senate Resolution 2086, celebrating the life of Curtis Wayne Newsom Jr. Senate Resolution 2087, celebrating the life of Billy Wilson Brooks. Senate Resolution 2091, celebrating the life of Paul B. Ebert.

[02:16:04] The resolutions will be agreed to in the usual manner. All those in favor of agreeing to the memorial resolutions, please rise. The resolutions are agreed to.

[02:16:21] Senator from Eastern Fairfax. Thank you, Madam President. Now I'll read the right motion. I move the commending resolutions on page 2, SR 2088 through SR 2090, be considered blocked by a voice vote with the understanding, or waiving the reading of the resolutions, the understanding that any senator desiring to remove a resolution of the block will do so after the clerk's read the number of the resolution.

[02:16:45] The question is, shall the commending resolutions on page 2, SR 2088 through SR 2090, be considered in a block by voice vote, waiving the reading of the resolutions with the understanding that any senator desiring a resolution be removed from the block will do so after the clerk has read the number of the resolution.

[02:17:05] All in favor of that motion, we'll say aye. Aye. Those opposed, no. the ayes have it the motion is agreed to the resolutions are now before us in a block the clerk will read the numbers of the resolutions commending resolutions Senate resolutions 2088 2089 2090 the question is shall the resolutions now be agreed to that is all resolutions on page 2 of the supplemental calendar all in favor of agreeing to the resolutions will say aye those opposed no the ayes

[02:17:39] have it the resolutions are agreed to. The chair recognizes the senator from Eastern Fairfax. Inquiry of the clerk. Is that complete? It's hopefully our last calendar of the year. It does. Is there any other business to come before the Senate? The clerk will report any announcements on the desk. We do not have

[02:18:13] any announcements. Drive safely. The chair recognizes the senator from Portsmouth. Thank you, Madam President. Madam President, I move that the Senate do now recess pursuant to SR 2001 until reconvened with at least 48 hours notice by the call of the chair of senate committee on rules the question is shall the senate now recess pursuant

[02:18:46] to SR 2001 until reconvened with at least 48 hours notice by the call of the chair of the senate committee on rules. All in favor of that motion we'll say aye. Those opposed no. The ayes have it.

[02:19:02] The motion is agreed to. The Senate stands in recess. Thank you for joining us. This concludes

[02:19:14] this broadcast of the Senate of Virginia in Richmond, Virginia. This is the Senate of Virginia,

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[02:22:52] meetings and explore our full archives anytime on the Senate of Virginia's YouTube channel.

[02:22:58] This is the Senate of Virginia, Richmond, Virginia.

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